Regulation & Governance

Regulation & Governance (2017) ••, ••–•• doi:10.1111/rego.12147

Can the hidden hand of the market be an effective and legitimate regulator? The case of animal welfare under a labeling for consumer choice policy approach

Christine Parker*
Melbourne Law School, University of Melbourne, Parkville, Victoria, Australia

Rachel Carey
Food Policy Research Group, Faculty of Veterinary and Agricultural Science, University of Melbourne, Parkville, Victoria, Australia

Josephine De Costa
University of Melbourne, Law, Parkville, Victoria, Australia

Gyorgy Scrinis
School of Agriculture and Food, Faculty of Veterinary and Agricultural Science, University of Melbourne, Parkville, Victoria, Australia

Abstract
In Australia, labeling for consumer choice, rather than higher government regulation, has become an important strand of the policy approach to addressing food animal welfare. This paper illustrates the usefulness of "regulatory network analysis" to uncover the potentials and limitations of market-based governance to address contentious yet significant issues like animal welfare. We analyzed the content of newspaper articles from major Australian newspapers and official policy documents between 1990 and 2014 to show how the regulatory network influenced the framing of the regulatory problem, and the capacity and legitimacy of different regulatory actors at three "flashpoints" of decisionmaking about layer hen welfare in egg production. We suggest that the government policy of offering consumers the choice to buy cage free in the market allowed large-scale industry to continue the egg laying business as usual with incremental innovation and adjustment. These incremental improvements only apply to the 20 percent or so of hens producing "free-range" eggs. We conclude with a discussion of when and how labeling for consumer choice might create markets and public discourses that make possible more effective and legitimate regulation of issues such as layer hen welfare.

Keywords: animal welfare, consumer governance, food labelling, media content analysis, regulatory network analysis.

1. Introduction

> Shoppers are entitled to know what they are buying and how it was produced… Shoppers who don't wish to support unethical egg production systems should vote with their dollars, as this is one instance where supply is definitely driven by demand (Loughnan 2012, p. 71).

It is deeply inured in contemporary neoliberal societies that people can use the market to govern capitalism through consumer choice (Shaw & Black 2010). This is especially true for food (Klintman & Bostrom 2004; Guthman 2007; Roff 2007; Hartlieb & Jones 2009). Pollan (2006), for example, famously encourages consumers to "vote with their fork" and "say no" to food produced using intensive, industrial, chemical-based methods. As a result, the marketing and information claims on retail food packaging have become a focus of conflict and contestation over a range of issues from the risks of genetic modification to the protection of locally distinctive small-scale production and the advancement of ecological sustainability (Ilbery & Maye 2007; Morgan *et al.* 2006; Albert 2009).

Correspondence: Christine Parker, Melbourne Law School, University of Melbourne, Parkville, Victoria 3010, Australia. Email: christine.parker@unimelb.edu.au
Accepted for publication 17 November 2016.

© 2017 John Wiley & Sons Australia, Ltd

This article addresses one such issue, higher animal welfare for layer hens, and asks what happens when government policy leaves the regulation of animal welfare to consumer choice. Does conflict and contestation instigate a race to the bottom in which producers engage in more and more misleading claims to obtain the benefit of a higher animal welfare halo on their food labels? Or can it lead to incremental improvement, large-scale transformation of the market, and public pressure for government regulatory reform?

Animal welfare for layer hens is a significant issue. By the 1960s, cage farming of eggs had become the predominant method of egg production in the Western world. Often considered the most industrialized and cruelest of animal food production practices, "conventional" or "battery" cage farming has been contested by animal rights activists ever since (Harrison 1964; Brambell 1965; Miele 2011; Veissier & Miele 2014). The European Union [EU],[1] New Zealand (National Animal Welfare Advisory Committee [NAWC] 2012), and some American states (see Lovvorn & Perry 2009; Mench *et al.* 2011)[2] have all mandated the slightly more humane "enriched" or "colony"[3] cages in preference to conventional cages. A few European countries have gone so far as to ban all cage systems for egg production.[4] However, in 2000, Australian government primary industries authorities (who are responsible for regulating agriculture and animal welfare) rejected banning conventional cages (Standing Committee on Agriculture and Resource Management Working Group [SCARM] 2000). Instead they chose to leave it to industry to label eggs as cage, barn, or free range in order to enable informed choice about hen welfare by consumers in the marketplace (SCARM 2000, pp. 10–11). In essence, the animal welfare policy choice was to be left to the "hidden hand of the market," to adapt Adam Smith's famous metaphor (Smith, p. 456). By 2014, "free-range" labeled eggs represented up to 40 percent of retail eggs sold in Australia, up from 14.5 percent in 2005 and 8 percent in 2001 (Australian Egg Corporation Ltd [AECL] 2014).[5] Consumers believe that in buying these eggs, they are supporting higher animal welfare, but the meaning and use of this term has become increasingly contentious and has been the topic of ongoing policy debates and initiatives since 2000, as this article will show (Choice May 2012).

Even when official government policy leaves contentious issues to the market, this does not leave the issue un-regulated. Rather there are always networks of public and private actors who influence and regulate market conduct more or less directly, and more or less effectively or legitimately, regardless of whether government has designed and implemented specific regulatory policy or not. By the same token, even when government does regulate on a specific issue, the shape and impact of that regulation will depend upon how it interacts with a range of other public and private regulation that all seeks influence over the same practices. This paper uses "regulatory network analysis" to uncover the impact of the hidden hand of the market on how the governance of layer hen welfare has continued to evolve through contestation, co-optation, and competition between a range of business, government, and civil society actors (e.g. Shearing 1993; Braithwaite & Drahos 2000; Scott 2001; Schneiberg & Bartley 2008; Abbott & Snidal 2009; Eberlein *et al.* 2014).

The first part of the paper explains this "regulatory network analysis" approach and its usefulness in analyzing the capacity and legitimacy of plural public and private actors who interact to co-create regulation of animal welfare in egg production in the broader context of "regulatory capitalism" (Levi-Faur 2012). Regulatory network analysis recognizes that the important regulatory question is not *whether* some issue, such as whether hens should be kept in conventional cages, is or is not regulated. The question is *how* is it governed, by whom, and to what effect? These questions are of great significance for consumers, non-governmental organizations (NGOs), government authorities, and the various large and small industry players who each depend on markets in different ways to achieve their goals and aspirations. Yet the answers, and their implications for legitimate and effective resolution of contentious policy goals, are quite often opaque.

The second part of the paper sets out our methodology for answering the research questions identified: content analysis of newspaper articles from major Australian newspapers and official policy documents between 1990 and 2014.

The third part reports our results and analysis by reference to each of three key government decisions or "flashpoints" for policy contestation between different actors: the decision not to ban cages (2000), the decision not to promulgate mandatory food labeling standards for higher animal welfare labels (2011), and, finally, the successful intervention of consumer protection authorities who attacked some "free-range" labels as misleading and deceptive (2014). We show that the continuation and wide appeal of animal advocate and consumer pressure has resulted in ongoing contestation of private regulatory standards and the partial co-optation of consumer regulators and powerful supermarkets to the cause of greater regulation of animal welfare labeling. As of 2014, the situation was still in flux. No one regulatory actor has the capacity to dominate the regulation of free range and the space will be subject to ongoing

 © 2017 John Wiley & Sons Australia, Ltd

contestation and dynamism until one actor or an alliance of actors succeed in "orchestrating" a resolution (Abbott & Snidal 2009).

The article concludes with a discussion of the potentials and limitations of market-based governance to address contentious yet significant issues like animal welfare. We suggest that the government policy of offering consumers the choice to buy cage free did lead to incremental improvement within a "business as usual" approach for the 20 percent or so of Australian hens who lay "free-range" labeled eggs. The high public profile of "free-range" egg labeling in the market and in public debate over the meaning of "free-range" created by the labeling for consumer choice governance approach now presents an opportunity (yet to be realized) for further improvement. Such improvement would require a larger scale disruption to industry practice, which could occur via further incremental shift in the accepted baseline for market practice or, more hopefully, further buildup of public and political pressure for a ban on battery cages in Australia to follow the EU, New Zealand, and some American states, as the Australian animal welfare standard for layer hens is currently under review (Animal Health Australia 2016). Public understanding of and contention over the conditions in which layer hens live, prompted by debate over "free-range" labeling, may well contribute to the buildup of this political pressure.

2. Revealing the hidden hand in the market: Regulatory network analysis

2.1. Regulatory network analysis

Much of the policy-oriented literature on regulation asks the question: When is regulation effective or not at adequately constraining markets? This implies that the question is about how regulatory interventions influence otherwise stable markets. Our analysis, by contrast, uses regulatory network analysis, an emerging approach to regulatory studies, to suggest that we should consider markets (such as the market for eggs) as a set of changing relations in which public and private standards are continually being created, adjusted, solidified, or destroyed. The question is how does a network of government, market, and civil society actors interact and change over time to create the plural regulatory governance standards governing any particular area at any particular time, and what is their impact? Who bears the burdens and benefits? How do the array of regulatory options available tend to open up or close down the possibility for further critique and/or resolution of substantive policy issues? This can help activists and policymakers redirect their regulatory attention. It can also help see more clearly what consumer choice means.

Regulatory network analysis is an emerging approach to policy analysis developed by regulatory studies researchers (Braithwaite & Drahos 2000; Cashore *et al.* 2011; Gulbradsen 2014; Levi-Faur 2012; Eberlein *et al.* 2014). It draws attention to the way that the regulatory governance of any particular area at any particular time is the result of ongoing interactions (contests, conflicts, alliances, modeling, and mimicry) by multiple actors (government, industry, and civil society), at multiple levels (local, national, and global), each seeking to exercise power legitimately and effectively (Scott 2001). Our regulatory network analysis combines the conceptual tools in Abbott and Snidal's (2009) market, government, civil society "governance triangle" and Eberlein *et al.*'s (2014) framework for analyzing transnational business government interactions.

As Abbott and Snidal (2009) point out, regulatory standard setting now increasingly occurs via a multiplicity and diversity of schemes with varying participation by a decentralized range of state, business firm, and NGO actors. The role of government and intergovernmental organizations is often more one of "orchestration" via soft law than mandate via command and control regulation. They suggest an analytic model for conceptualizing regulatory space as a triangle in which state, business firm, and NGO actors interact with each other to varying degrees to set standards under different regulatory standard schemes. Abbott and Snidal (2009) and others (see Meidinger 2006/2007) apply this style of regulatory network analysis to describe transnational business regulation, and to suggest opportunities for business government interaction to overcome failures of international business regulation. As this article shows, their conceptual framework is equally applicable to revealing how government, industry, and civil society co-create regulatory space within a nation state, as in the market for eggs in Australia (noting that fresh eggs cannot be imported into Australia), where there is little formal law or regulation and a proliferation of competing voluntary codes. Abbott and Snidal helpfully analyze the strengths and weaknesses of different schemes along a number of dimensions, pointing out that the capacities and interactions of the various actors will determine the degree of democratic participation and engagement (2009, pp. 554–558), and the degree to which voluntary action by either firms or public audiences (such as consumers) can be relied upon to achieve policy goals (2009a, pp. 560–563). We draw on their insights in our analysis

© 2017 John Wiley & Sons Australia, Ltd

below.Eberlein *et al.* (2014, pp. 6–7) further specify what questions we must ask in order to understand how governments, NGOs, and businesses interact to co-create regulatory space. They suggest that it is useful to disaggregate regulatory governance into six components: (i) framing the regulatory agenda and setting objectives; (ii) formulating rules or norms; (iii) implementing rules within targets; (iv) gathering information and monitoring behavior; (v) responding to non-compliance via sanctions and other forms of enforcement; and (vi) evaluating policy and providing feedback, including review of rules.For each component they suggest six questions:

1. Who or what is interacting?
2. What drives and shapes the interactions?
3. What are the mechanisms and pathways of interactions?
4. What is the character of interactions?
5. What are the effects of interaction?
6. How do the interactions change over time?

Eberlein *et al.* (2014) argue that it is valuable to specify the mechanisms by which actors interact in performing concrete regulatory tasks and techniques because it is these interactions that explain the regulatory capacity, performance, and outcomes of each regulator and the whole network.

The significance of these interactions go beyond the regulatory outputs to the very shape of the market – what products are available, and how they are produced and sold. It is important to understand the dynamics of regulatory governance networks because markets and regulation (by which we mean business-government-NGO regulatory interactions) continually constitute one another. Levi-Faur (2012; see also King & Pearce 2010) draws on Polanyi's (1944) theory of how economies are embedded in sociopolitics to suggest that the proliferation of plural and networked regulation is not holding markets back, but is the essence of capitalist innovation. Contemporary capitalism takes the form of "regulatory capitalism" in which new markets – and hence the range of consumer choice – are created and old ones destroyed through new networks of public and private governance. Whenever there is conflict and contention over values or policy goals in markets, there is conflict and contention over regulation, and how it is legitimate or not to exercise regulatory power. Whenever anyone seeks to challenge existing market practices they must eventually use the various components of regulation identified by Eberlein *et al.* (2014) to challenge existing power relations, cultures, and technologies in order to be successful. Conversely, those who benefit from the existing system will seek to use regulation to respond to the challenge while preserving their position (King & Pearce 2010).

2.2. Food labeling and regulatory network analysis

Food labeling is a particularly fruitful area to study this interaction. The food label – broadly defined to include the marketing and branding on the packaging and retail display of food – has become a space for a range of public and private regulatory claims and contests to be played out (Parker 2014; Scrinis & Parker 2016). Investigation of the value chain that connects food production and consumption inevitably uncovers the importance of networks of public and private regulation and governance in sustaining and challenging the values and practices underlying the chain (Nestle 2003; Guthman 2004; Lang & Heasman 2004; Morgan *et al.* 2006). Regulation – formal legal-contractual arrangements, logo accreditation schemes, legislative frameworks, and informal conventions – is integral to stabilizing those chains and defining which values, interests, and assumptions about how food production should be organized prevail in different links in the chains. There are a host of private attempts to standardize and regulate the claims made on food labels, including various voluntary accreditation logos and standards; supermarket, hospitality, and food processors' supply standards; and attempts by various advocacy organizations to influence both government and private regulatory attempts (Fulponi 2006; Havinga 2006; Meidinger 2008; Fuchs *et al.* 2011). This makes it increasingly important to look behind the label (see also Bartley *et al.* 2015) at the network of regulation and governance that influences what is put on the label. Which stakeholders are most vocal? What interests and regulatory policy options do they represent? And how do they interact to influence and change the choices put to consumers in the market over time? By revealing the politics and governance of the label, we can also reveal the politics and governance at work in the market. While much work has been done uncovering the politics behind nutritional and health front of pack food labeling (Scrinis & Parker 2016; Scrinis 2016), less has focused on higher animal welfare and other quality claims (see Buller & Roe 2013).

 © 2017 John Wiley & Sons Australia, Ltd

2.3. Research questions

For the purposes of this paper we focus particularly on Eberlein *et al.*'s (2014) first aspect of regulatory governance: framing the regulatory agenda and setting objectives. This is because at stake in this case study is the very framing of the issue of the caging of hens in egg production as a regulatory issue, and if so, what sort of issue. Regulatory studies literature often assumes that there is agreement on a substantive policy goal (e.g. less use of cages for hens) and then examines, evaluates, and compares different government, private, and hybrid governance mechanisms for implementing and achieving the goal. The case study in this paper, however, is a situation where the policy goal is at best vague (animal welfare and consumer choice) and in practice hotly contested (ban cages or not). This leaves the issue of animal welfare open to contestation as to what regulatory standards under what type of regulatory agenda would apply – industry, NGO, or retailer standards for animal welfare and on farm practice? Consumer protection prohibitions against misleading and deceptive labeling? Or the potential to re-open the possibility of legislated animal welfare protections?

We focus particularly on three of Eberlein *et al.*'s (2014) specific questions: Who or what is interacting; what is the character of the interaction; and what is the effect of the interaction? We also examine how the interactions change over time. We use the term "flashpoint" to point to the way in which contestation and conflict between regulatory actors and regulatory policy proposals at each of these points in time lead to a particular outcome. Yet the network of interaction means that these outcomes continue to unfold over time.[6]

3. Methodology

3.1. Data sources

This paper tracks the interactions between the changing actors, discourses, and regulatory mechanisms mentioned in reported public policy debate about the ethical governance of animal welfare in egg production from 1990 to 2014. The data for this regulatory network analysis are all publicly available official policy documents and reports, and newspaper articles from major Australian newspapers concerning the ethics and governance of animal welfare in egg production and consumption from 1990 to 2014.

The comprehensive collection of official policy documents concerning animal welfare in egg production and related labeling issues were used to create a timeline of policy events and to record the debates and discourses that were used to justify various policy developments over time. The timeline was then used as the basis for defining search terms to collect all newspaper articles in major Australian newspapers digitally archived in Factiva concerning governance of animal welfare in egg production and consumption.[7] This resulted in a total of 712 articles.

It is an inherent limitation of relying on newspaper articles as a data source that they do not necessarily capture all the stakeholders and discourses that may have been influential behind the scenes in private lobbying or in other fora that are not reported.[8] However, the comprehensive tracking of regulatory policy documents means that we were able to ensure that all policy discussions with stakeholder involvement that led to a formal outcome were considered, with an emphasis on those who were most vocal in public discourse. Newspaper articles also do not capture increasingly important social media debates and discourses; however, as our aim was a comparison over time, it was important to use a stable data source from across the time period.

3.2. Data analysis

The articles were coded using NVivo for any mention of different stakeholders and regulatory policy options. The codes were grouped and statistics produced using NVivo.[9] The basic coding categories used for analysis of the newspaper articles were developed on the basis of the comprehensive collection of official policy documents and preliminary qualitative analysis of media articles. These codes were tested with a preliminary sample then refined and applied to the whole data set.

The article content lends itself to quantitative analysis to identify which stakeholders and regulatory policy options are used when – and, thus, compare the dominance of different stakeholders and regulatory policy options at different times. Further qualitative analysis identifies and assists an understanding of the discourses used by various stakeholders to justify their policy positions, the terms of debate, and the interaction between the various actors. This approach has much in common with studies of how media frame news and social issues (see e.g. Nisbet *et al.* 2003; Kitzinger 2007). Here, however, the focus is on how regulatory actors, policy options, and discourses interact and appeal to the public as reflected in newspaper articles (following Almond 2009; Van Erp 2013).

© 2017 John Wiley & Sons Australia, Ltd

4. Results and discussion

Table 1 summarizes the results of our analysis of policy documents and newspaper articles from 1990 to 2014 by reference to three flashpoints: the decision not to ban conventional cages in 2000; the increasing contestation of the meaning of "free range" by 2011; and, finally, the rise of consumer regulators in 2014. The following sections explain for each flashpoint first which actors interacted and the character of their interaction at each flashpoint; and second, the impact of those interactions on the regulatory capacity of the various actors and regulatory policy.

Table 2 summarizes the key government, industry, and civil society actors identified. Note that actors at different governance levels – local, state, national, and even international – may all be relevant. In Australia, state and federal governments together decide policy on animal welfare regulation in primary production through the Australian Animal Welfare Strategy.[10] Australia is a federation of states and independent territories that has a parliamentary system of government based on the "Westminster" model. The federal (national) and state governments share responsibility

Table 1 Timeline of developments showing three flashpoints

2000	**FLASHPOINT 1: Agriculture ministers for all of Australia decide not to ban conventional cages and instead leave improvements in animal welfare to industry led consumer choice on the basis of labeling**.
2001	The very small Australian Capital Territory (ACT) legislates to mandate the labeling of cage, barn, and free-range eggs.
2003	The industry association, The Australian Egg Corporation Limited (AECL) introduces the 'Egg Corp Assured' voluntary quality assurance scheme including free-range certification and Egg Corp Assured label logo.
2006	There are now five alternative voluntary free range accreditation standards in addition to the Australian Egg Corp Assured standard: Humane Choice (animal welfare organization) (2006); Australian Certified Organic (organic industry body) (2006); The Royal Society for the Prevention of Cruelty to Animals Assured (animal welfare organization) (1996); and Free Range Farmers Association (very small-scale farmers association) (1998) and Free Range Egg and Poultry Australia (small to medium scale farmers association) (1995).
2008	Leading Australian consumer advocacy organisation, CHOICE, gives the Australian egg corporation a "shonky"' award for their definition of free range.
2009	AECL initiates a review of its "Egg Corp Assured" quality assurance program.NSW Green Senator John Kaye questions whether there are enough free range hens in Australia to produce the number of eggs sold as free range. Woolworths supermarket announces that it will phase out own-brand caged eggs.
2010	Coles supermarket announces that it will phase out own brand caged eggs and drop the price of free-range eggs.The Australian Competition and Consumer Commission (ACCC) successfully takes action against an egg producer for selling caged eggs as "free range."
2011	**FLASHPOINT 2: The Blewett Review of Food Labelling Law and Policy determines that animal welfare is a "consumer values issue" and rejects mandatory labeling of eggs to indicate production method or higher animal welfare status. It also rejects legislatively defined label terms**. From 2011 onwards, Greens members of parliament regularly introduce bills into various state parliaments seeking mandatory labeling of production method of eggs and bans of battery cages.
2012	The AECL proposes an outdoor stocking density for free range of 20,000 hens per hectare.The ACCC successfully takes action against another egg producer for selling caged eggs as "free range." The ACCC announces that it will refuse the AECL's application because the proposed definition of free range is potentially misleading and deceptive.
2012	Coles supermarket sets their own standards for free range of 10,000 hens per hectare and announce again that no own-brand eggs will be cage eggs. These initiatives are heavily advertised.CHOICE lodges a complaint with the New South Wales (Australia's largest state) consumer protection regulator about misleading free range labeling in the egg industry.
2013	Woolworths supermarket changes its standard for free range to 10,000 hens/hectare and announces it will phase out the sale of both own-brand and branded cage eggs and cease using cage eggs as an ingredient in own brand products.CHOICE gives "shonky" award for misleading free-range eggs. The ACCC commences proceedings against more egg producers for misleading and deceptive use of free range claims.
2014	**FLASHPOINT 3: The ACCC succeeds in action against one large-scale "free-range" egg producer for misleading and deceptive free range claims because most hens did not in fact move about freely on a range on most ordinary days; and commences action against more egg producers**. The ACT bans battery cages. Federal and State Consumer Affairs Ministers announce that they will develop a mandatory information standard for eggs.

 © 2017 John Wiley & Sons Australia, Ltd

Table 2 Summary of stakeholders[20]

Sectors	Key actors	Focus
Government		
Federal and State Agriculture Ministries and Departments	Can act separately or collectively as Standing Committee on Agriculture and Resource Ministries (SCARM)	Set and implement policy for both promoting and also regulating agriculture and primary industries including regulation of agricultural animal welfare
Consumer regulators	Australian Competition and Consumer Commission (ACCC), the federal government competition and consumer authority	Enforce consumer protection law in court including prohibition on misleading and deceptive labeling
Members of Parliament	Australian Greens	Elected members of parliament (including John Kaye) from state branches of the Australian Greens, a national political party with a focus on environmental politics
Industry		
Industry bodies	Victorian Farmers Federation	Peak body representing farmers in the state of Victoria
	Australian Egg Corporation Ltd (AECL)	Main industry services body for the egg industry that also acts as an accreditation body
Supermarkets	Coles, Woolworths	Australia's two dominant national grocery retailers
Producers	Three dominant very large-scale producers and many medium and small-scale producers	Includes large, medium, and small-scale producers
Industry accreditation bodies	Australian Certified Organic (ACO), The National Association for Sustainable Agriculture, Australia Certified Organic	Fully owned subsidiaries of organic industry bodies that also act as the main accreditors of organic products
	Free Range Egg and Poultry Association, Free Range Farmers Association	Associations of smaller scale free-range farmers and that certify medium and small-scale free-range egg producers
Hospitality	McDonalds	Fast food business
Civil society		
Animal advocacy group	Animal Liberation, Animals Australia, Voiceless	National animal rights and advocacy organizations
	The Royal Society for the Prevention of Cruelty to Animals, Humane Choice	Australian branches of international animal welfare groups; both also operate higher animal welfare accreditation and certification standards
Consumer advocacy group	CHOICE	National consumer advocacy group that has campaigned for a national "free range" standard

for various aspects of food regulation and policy. As a result, both federal and state governments are active in the policy arena in relation to debates about how animal welfare should be regulated and free range on food labels defined. There is also policy interaction on the issues between federal and state governments and across the various state governments. It is generally the responsibility of state governments to implement animal welfare in state legislation and enforce it through state primary industries departments as the relevant regulators. As Figures 1, 2 and 3 show, the variety of actors involved in the debate expanded significantly over the course of the period studied.

4.1. 2000: The decision not to ban conventional cages

4.1.1. Regulatory actors and character of interaction. The first flashpoint occurred in 2000 when Australian federal and state agriculture ministers collectively rejected the EU's policy approach of banning bare battery cages and requiring enriched cages (SCARM 2000). The lead-up to this decision was a highly adversarial competition between egg industry bodies and animal advocacy groups. Both parties appealed to the third main actor in the regulatory network, government agricultural departments, which had the responsibility of deciding whether or not to prohibit battery cages. As Figure 1 shows, these three groups of actors dominated newspaper reporting of the issues.

Throughout the 1980s and 1990s, a range of animal advocacy groups had continually sought to draw attention to the suffering of hens in conventional battery cages, which they completely opposed, through media statements, direct

© 2017 John Wiley & Sons Australia, Ltd

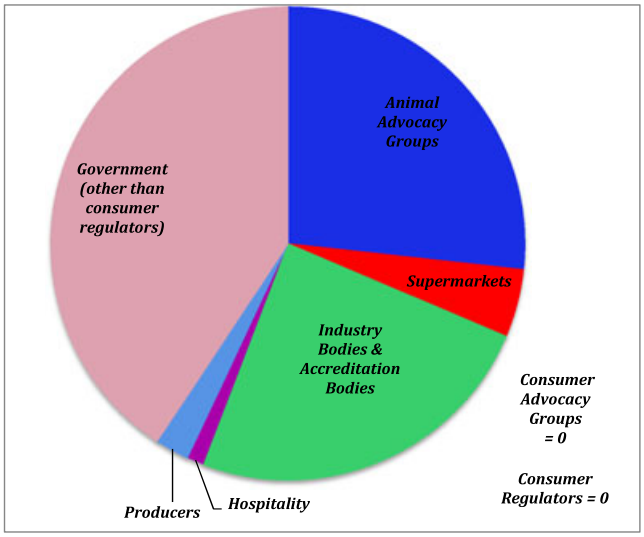


Figure 1 Flashpoint 1: 2000, No ban on battery cages. Proportion of newspaper articles mentioning different categories of actors 1990–2014 (n = 86).

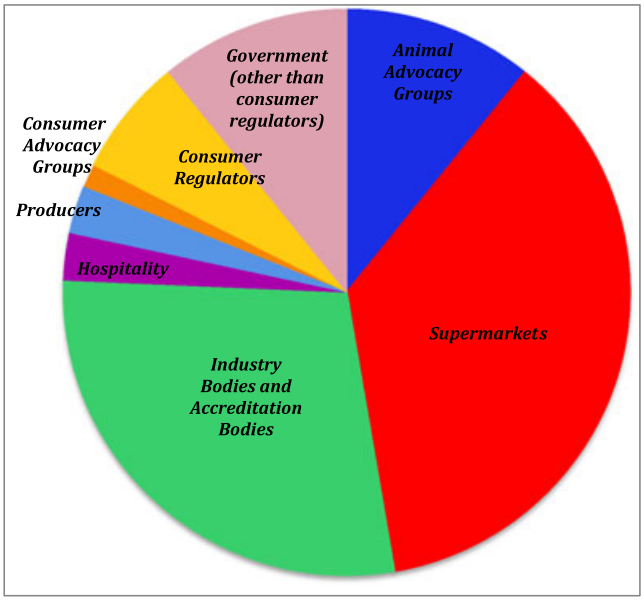


Figure 2 Flashpoint 2: 2011, food labelling review refuses to make mandatory labelling standards. Proportion of newspaper articles mentioning different categories of actors 1990–2014 (n =74).

protest action, and the publication of photographs and detailed descriptions of conditions inside conventional egg farms (e.g. Armitage 1980; Simpson 1982; Porter 1989; Kelly 1994; Green 1999). By 2000, both major national animal welfare advocacy organizations, the Royal Society for the Prevention of Cruelty to Animals (RSPCA) Australia and Animals Australia, had "current major campaigns aimed at banning the use of conventional cages for laying hens" and these had received significant public support (SCARM 2000, p. 23). Their campaigns were supported by politicians from the minority Democrat and Green parties (Taylor 2000), and there was considerable optimism that the "cruelty and suffering" of the conventional cage would soon be banned in Australia (Farrant 1999). The Tasmanian government (Australia's smallest state) supported a ban, and the small jurisdiction of the Australian Capital Territory (ACT) had already passed legislation to ban battery cages in 1999.[11]

Primary producers and their representative bodies marshaled a comprehensive set of arguments against a ban. They first argued that "[t]he general consensus… and this is the view of the industry and the view of scientists, is that in an

 © 2017 John Wiley & Sons Australia, Ltd

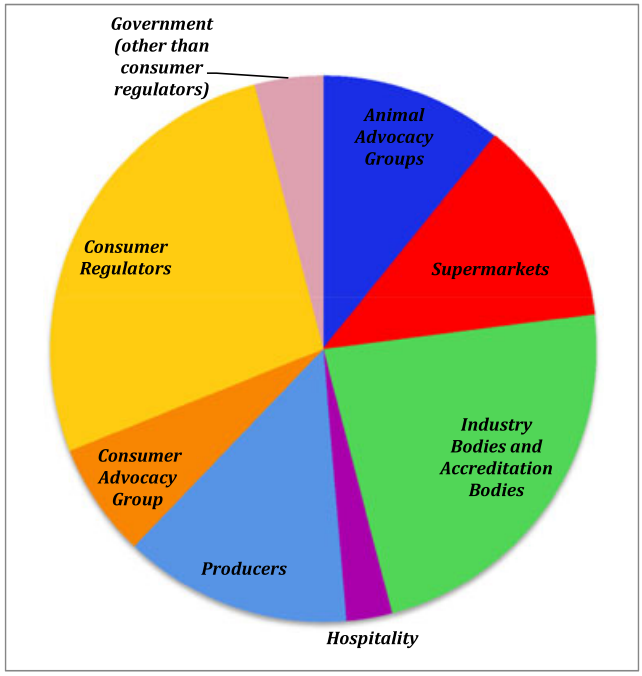


Figure 3 Flashpoint 3: 2014, the Australian Competition and Consumer Commission takes enforcement action against misleading and deceptive free range labelling) ($n = 74$).

overall sense the cage system best meets the welfare needs of laying hens" (Alcorn 1999). Second, they argued that a ban would mean consumers were "denied the freedom to choose to purchase caged eggs" and pointed out that consumers already had the choice of cage-free eggs but the vast majority at that time chose to buy cage eggs (Alcorn 1999). Finally, the industry argued that a ban on battery hen production "would increase production costs by about $100 million a year" because of the need to invest in new non-cage housing to accommodate hens (Bolt 2000). The governments of the largest egg producing states, New South Wales (NSW) and Victoria, supported the industry's position.

In 2000, federal and state agriculture ministries acting collectively as the Standing Committee of Agriculture and Resource Ministries (SCARM) determined not to ban conventional cages. SCARM stated that its objective was the:

> …quality assured health and welfare of fowls in a commercially viable, competitive and environmentally friendly egg industry producing a regular, reliable and affordable supply of eggs allowing for informed choice by consumers and according to contemporary standards for food safety and occupational health (pp.3–4).

It recommended legislating a small increase in cage sizes and setting up an industry-based quality assurance and labeling standard that included clearer labeling of cage, barn, and free-range eggs. Alongside their campaigns to ban conventional cages, animal welfare groups had long advocated that in the absence of a ban on battery cages, consumer-citizens should buy free-range labeled eggs. Indeed, as early as January 1980, *The Sydney Morning Herald* reported that the NSW Minister for Agriculture had agreed to the sale of eggs labeled "free range" to distinguish them from battery cage eggs on the request of Animal Liberation (Anonymous 1980; see also Roberts 1985). By 2002, the non-mandatory government Model Code of Practice for the Welfare of Animals: Domestic Poultry briefly mentioned cage, barn, and free-range options for egg production. SCARM's proposal accepted the industry position while palliating animal welfare concerns by proposing to "let all consumers vote with their shopping trolleys at the supermarket checkout" (Anonymous 2000). The resulting labeling for consumer choice approach was a government attempt to coordinate between the otherwise highly conflicting views of industry and civil society.

4.1.2. Impact of interaction on regulatory policy and capacity. The immediate impact of the SCARM decision was to largely remove the possibility of banning conventional cages and requiring enriched cages from the public policy agenda. As Figure 4 shows, in the period leading up to 2000 (and reaching a peak around 1999/2000), relevant

© 2017 John Wiley & Sons Australia, Ltd

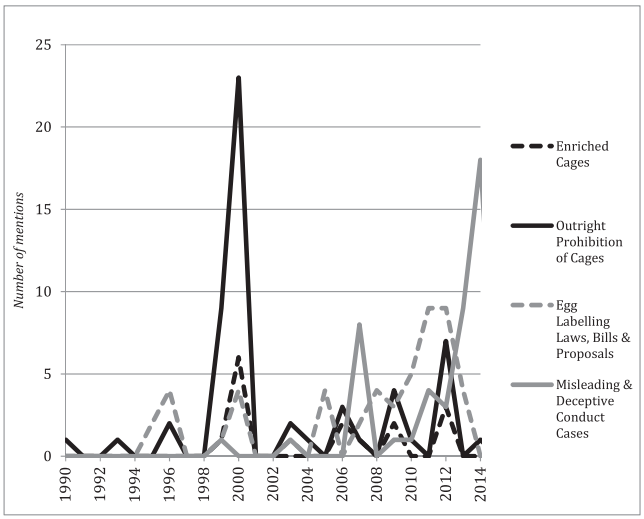


Figure 4 Number of mentions of different regulatory options for regulating layer hen welfare in major Australian newspapers, 1990–2014.

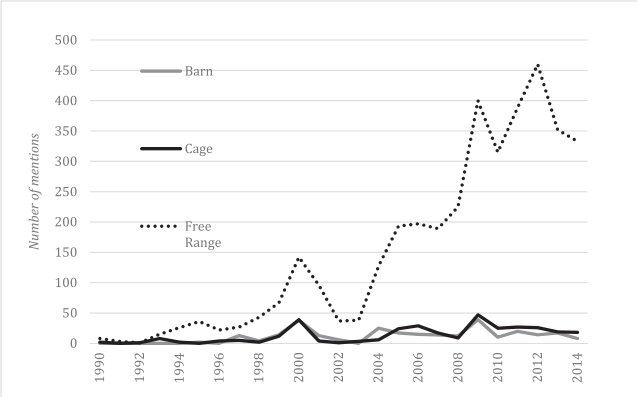
newspaper articles were predominantly concerned with whether or not to ban battery cage production. This issue dropped right off the agenda in 2001 with labeling and misleading and deceptive conduct issues increasingly becoming more important (as we shall see). SCARM and mainstream industry succeeded in shifting the interaction from a high conflict debate over whether to regulate production by banning battery cages to a general agreement that regulation should facilitate consumer ability to choose cage free if consumers wished.

The second impact of the SCARM decision was to open up the regulatory space to a variety of voluntary certification and labeling schemes aimed at substantiating "free range" claims on retail eggs. The earliest higher animal welfare voluntary accreditation scheme had been the RSPCA's "approved farming" standard for layer hens in 1996. This focused on cage-free indoor "barn" production.[12] The Free Range Farmers Association, an association for small-scale, alternative producers, introduced a "free range" accreditation and logo scheme in 1998. In 2003, in response to the 2000 SCARM Report, the Australian Egg Corporation (AECL), the industry association representing mainstream egg producers, introduced its own official quality assurance scheme, "Egg Corp Assured," which included minimal free range production and labeling requirements suitable for large-scale conventional egg producers. Two further alternative higher animal welfare certification and labeling schemes covering layer hens were introduced in 2006: Humane Choice (offered by an animal welfare organization with small-scale producer involvement) and Australian Certified Organic. This proliferation of competing free-range accreditation schemes also created the conditions for contestation and confusion in the ensuing years.

SCARM recommended that the AECL's quality assurance scheme receive legislative backing, that methods of production for labeling be legislatively defined, and that labeling standards be set under federal consumer protection legislation or state labeling legislation (Standing Committee of Agriculture and Resource Ministries [SCARM] 2000, p. 27). However, no definitions of the different production methods or labeling standards were introduced in legislation. As we shall see, there may have been broad acquiescence to the labeling for consumer choice approach to animal welfare, but this was not the end of conflict. The meaning of "free range" labeling claims were increasingly contested in the following years with Green members of parliament (MPs) and activists calling for legislation to mandate labeling and define the term "free range" (see Figure 5).

The third impact of the decision not to ban battery cages related to the hens themselves. The policy frame shifted from the possibility of incremental regulatory improvement in animal welfare for *all* layer hens (e.g. by requiring enriched cages with the potential for further improvements in years to come) to making available cage-free eggs to satisfy one segment of the market. This postponed the possibility for improvement in animal welfare for the vast majority of hens, namely those that produced eggs for consumers still willing to buy retail cage eggs and those eggs produced for hospitality, catering, and processed foods. The former now amount to about 60 percent of retail eggs, while the latter amount to just over half of the eggs produced in Australia and are mostly cage as they are subject to less

 © 2017 John Wiley & Sons Australia, Ltd



[1] This is a summary of organisations coded in each category. A full list is available from the first author.

Figure 5 Number of times "cage," "barn" and "free range" mentioned in relation to egg production and layer hen welfare in major Australian newspapers, 1990–2014.

scrutiny by consumers (Outlaw 2012).[13] (There has been little discussion in the Australian newspapers of the possibility of contesting the use of cage eggs in fast food outlets like McDonalds [see the hospitality section in Figures 1, 2 and 3].) Thus, SCARM's labeling for consumer choice approach to higher animal welfare standards postponed or shut down the possibility of removing cages for about 80 percent of egg producing hens in Australia.

4.2. 2011: Mandatory food labeling standards for animal welfare rejected

4.2.1. Regulatory actors and character of interaction. By 2007, newspaper debate about animal welfare labeling of eggs had become preoccupied with discussion of the meaning of "free range." Figure 5 compares the number of mentions of cage, barn, and free-range production systems in newspaper articles between 1990 and 2014, showing an increase in discussion of the term "free range."

The government agriculture ministries' adoption of the labeling for consumer choice approach had left the regulatory field ripe for competition between different free-range labeling and certification schemes. Moreover, the transmutation of the possibility of higher animal welfare regulation by government into a consumer choice had also opened up the possibility that a broader range of civil society and consumer groups would enter this debate. By 2007, the constellation of stakeholders mentioned in the newspaper articles expanded to include consumer advocacy NGOs, consumer regulators, and supermarkets, in addition to those concerned with animal welfare and primary production. Figure 2 shows the figures for 2011, at which time the Australian government's food labeling review rejected the possibility of introducing mandatory labeling standards for higher animal welfare claims (as discussed further).

In 2008, consumer advocacy group, Choice, gave the Australian Egg Corporation a "shonky award" for their definition of "free range," involving an outdoor stocking density of 20,000 hens per hectare, many times more than the 1500 hens per hectare in Australia's non-mandatory Model Code of practice for the Welfare of Animals: Domestic Poultry and the 2500 per hectare definition of free range legislated in the United Kingdom (Burke 2008; Department for Environment, Food, & Rural Affairs 2002). In 2009, NSW Green Senator, John Kaye, issued a press release using the egg industry's own statistics to question whether there were really enough free-range hens in Australia to produce the number of free-range labeled eggs being sold: he suggested that there was either widespread substitution of cage or barn for free-range eggs or that what was being called "free-range" production was closer to barn with minimal access to outdoors (Burke 2009). Three years later, the AECL admitted that it had indeed certified "free-range" operations with stocking densities of 50,000 hens per hectare and minimal outdoor access (AECL 2012a).

The key issue of contention became whether "free range" should be defined in a way that facilitated large-scale supply at reasonable cost or whether it should be defined in a way that sees it as a smaller scale, premium – and higher welfare – alternative to most of the eggs (cage, barn, or even "free-range" labeled) available in major supermarkets.

© 2017 John Wiley & Sons Australia, Ltd

By 2009, a number of newspaper articles reported that free-range producer and accreditation organizations (such as Humane Choice and the Free Range Farmers Association), smaller pasture-based producers, and certain specialist retailers (particularly organic stores and farmers markets) advocated a small-scale, pasture-based version of free range in which birds spend most of their time out on the range with indoor housing an option when required. Features of this method of production typically included low flock sizes; low stocking densities (both outdoors and indoors); movable housing; significant groundcover, shelter, and enrichment on the range; and the use of Maremma Sheepdogs to protect the hens from foxes (e.g. Wilson 2010). This contrasted sharply with the intensive barn-based systems used by the larger scale "free-range" egg producers who supplied the major supermarkets. These systems house flocks of tens of thousands of hens in large barns with nesting facilities and feed and water inside the barn. Doors or small popholes are opened to afford some of the birds access to a range area, but they may not be open for very long each day, the range is often bare and unattractive to the birds, and it may be very difficult for most birds to make their way through the barn to the pophole or door (e.g. Smith 2011). Moreover, the birds are de-beaked to avoid pecking and cannibalism in their crowded condition. Some large-scale producers argued that either cage or barn-based production was better than free range for animal welfare (because of the protection from predators), health and safety (protection from infection from wild birds and other dangers outside and the ability to control conditions inside), and cost efficiency to enable consumer choice. Their perspective is discussed further in the third flashpoint.

By 2011, Green MPs, consumer and animal activists, and some smaller scale producers were advocating for mandatory labeling laws to be introduced throughout Australia (e.g. Smith 2011). The small jurisdiction of the ACT had introduced a mandatory requirement to clearly label and separate cage, barn, and free-range eggs in all stores in 2001.[14] The EU had also mandated labeling of the production method (organic, free-range, barn, or cage) for retail eggs since 2008, with each method of production legislatively defined.[15] A comprehensive federal government review of food labeling regulation and policy in 2011 appeared to afford an opportunity to introduce similar requirements in Australia. The Food Labelling Law and Policy Review Panel (2011) ("the Blewett Review"), however, determined that animal welfare was a low risk, "consumer values" issue that did not warrant mandatory labeling requirements nor legislated definitions of the claims used on labels (see also Bruce 2012; Food Standards Australia and New Zealand 2013). Rather, animal welfare labeling should be a matter of self-regulation and enforcement of the general consumer laws prohibiting misleading and deceptive conduct.

Thus, neither agriculture departments, responsible for regulating animal welfare, nor the food standards authority, responsible for regulating food labeling standards, were willing to coordinate between competing conceptions of free range and animal welfare. This fit a neoliberal, soft touch sensibility in Australian regulatory governance in general (e.g. Papadakis & Grant 2003), and agri-food policy in particular (Lockie & Higgins 2007). This was explicitly acknowledged in the Australian Government's 2013 National Food Plan, which stated that "consumer preferences… shape the food system" and consumer choice in the market should drive livestock production methods (Department of Agriculture, Fisheries and Forestry 2013). It was even left to the market to coordinate competing certification and labeling standards according to consumer choice.

From 2011 onwards, newspapers reported that Greens senators in the states of NSW, South Australia, Tasmania, and Western Australia sought to bypass the Federal Government's unwillingness to act on this issue by introducing legislation into state parliaments to define "free range," or mandate labeling of the production system, but none of these passed into law.

The egg industry's legitimacy, however, suffered a serious blow when the Australian Competition and Consumer Commission (ACCC) had the opportunity to consider the AECL's voluntary free range labeling standard and issued a draft ruling that it would be misleading and deceptive. The circumstances illustrate the potential of consumer protection law to impact on industry even when other arms of government have left industry to self-regulate. In 2012, the AECL decided to respond to criticisms that its self-regulatory free-range labeling standard was inadequate and weak by proposing a new standard with slightly better conditions and greater enforcement (AECL 2012b). The proposed new standard still, however, allowed very large-scale production with very high stocking densities (20,000 hens per hectare) and minimal outdoor access. The AECL had to apply to the national consumer regulator, the ACCC, for permission for the trademark logo element of its new standard. The ACCC responded to an unprecedented outpouring of public opinion about the proposed new standard by conducting consultation and issuing a draft report indicating it would refuse the application on the basis that the new standard would be misleading to consumers (ACCC 2012). The ACCC viewed the AECL standards as likely to mislead and deceive on the basis that

 © 2017 John Wiley & Sons Australia, Ltd

consumers "pay more for free range eggs because they associate it with a higher standard of animal welfare" (para 141), and that these expectations would not be met with the AECL's definition of "free range" at 20,000 per hectare with no guarantees about how long the hens actually spent outside, what enrichment and protection there would be for the hens on the range, and no prohibitions against beak-trimming or other practices seen as cruel by many consumers and activists.

4.2.2. Impact of interaction on regulatory policy and capacity. The first impact of the failure of mandatory higher animal welfare food labeling standards was that an increasing range of actors were involved in seeking to regulate, and also critique, free-range egg farming practices. The regulatory space was contestable, with no one standard or viewpoint dominating. The multiplicity of competing schemes and conceptions allowed producers to choose the lowest standard or no standard at all while still labeling their eggs as "free range" or higher animal welfare (see Parker *et al.* 2013; Parker & Scrinis 2014; Parker & De Costa 2016). This made it difficult for consumers to know which label claims to trust, and thus undermined the apparent policy goal of allowing consumer choice in the marketplace to drive livestock production and animal welfare.

The second impact was on the layer hens themselves. As argued above, the majority of animals were still in bare battery cages with no immediate realistic prospect of an improvement in their condition. By 2011, it was clear that the 20 percent or so of hens that were intended to benefit from consumer choice to buy "free range" were housed in a very large range of "free range" conditions, with no guarantee that most were in fact higher animal welfare. Moreover, the policy debate increasingly focused on whether these various industry practices could accurately be labeled free range rather than whether and how they *improved animal welfare*.

4.3. 2014: Consumer regulators regulate free range

4.3.1. Regulatory actors and character of interaction. The discussion of animal welfare in egg production in newspaper articles after 2011 reflects the increasing framing of the debate as a consumer issue about misleading labeling. The general dissatisfaction among consumers and NGOs with the state of free-range egg labeling, and the uncertainty of industry as to what standard was acceptable, set the scene for a contest between industry, retailers (supermarkets), and consumer regulators as to who would control the definition of free range for the purposes of labeling. Consumer regulators, consumer advocacy organizations, and supermarkets (and their strategies to appeal to animal welfare conscious consumers) became more prominent stakeholders in mainstream newspaper articles after 2011, as shown in Figure 3, with the total number of articles mentioning free range and hen welfare issues expanding.

Choice, Australia's leading consumer advocacy NGO, first featured in newspaper reports about free-range eggs in 2001, and from 2007 featured in small but steady proportions every year from 2007. Choice is an increasingly powerful representative of consumer and citizen concerns about mainstream egg industry practices; however, the main trend is the parallel but essentially competing attempts to dominate the governance of free-range labeling by the federal consumer regulator, the ACCC on one hand, and the two dominant supermarkets (Coles and Woolworths) on the other. Both claim to act in the interests of the consumers, but from different points of view, with the ACCC focusing on consumers being misled and supermarkets focusing on the availability of affordable choice.The majority of egg industry actors, including the large producers and the industry association, maintained that the meaning of free range should allow for very large-scale production in order to keep costs down and prices low for what they argue is "still the most cost-effective and affordable protein source available" (Unknown 2010; see also Smith 2012). Even in 2014, Victorian Farmers Federation egg producer group President Brian Ahmed is quoted as saying:

> … to produce the quantity needed to feed the Australian community, free-range egg farmers would need to run between 10 and 20,000 birds per hectare… People who think all the farms will be 100 chooks running around an open paddock need to know it will not happen, there is just not enough land (Davey 2014).

Ahmed also maintained that consumer choice must include the option of cage eggs "to meet the needs of consumers and their budgets" and pointed out that "farmers had moved to caged eggs in the 1960s because of consumer demand for a cheaper, cleaner product."Australia's two dominant supermarkets, Coles and Woolworths, made their own attempt to co-opt both industry and consumer understandings of free range in response to the decreasing

© 2017 John Wiley & Sons Australia, Ltd

legitimacy of the free-range labeling component of the AECL's quality assurance standard (see Parker & Scrinis 2014; Lewis & Huber 2015). In 2009, Woolworths announced that they would phase out their own brand cage eggs (Watson 2009). Coles made a similar announcement in 2010. By 2013, both had stepped fully into the emerging debate over the meaning of free range by setting their own standards for outdoor stocking density in free-range egg production (10,000 hens per hectare, half that of the AECL but still much higher than the stocking density proposed by animal welfare advocates of 1500 per hectare). Coles in particular sought to position itself as mediating between consumers and industry with a reasonable and sustainable governance standard. A Coles representative stated, "we came to this figure after consulting with industry and welfare groups, and we believe it strikes the appropriate balance between animal welfare and keeping free range egg prices within reach of most Australians…" Spokesman Jim Cooper added that Coles had been advised by the industry that any broader moves to lower stocking density would result in fewer free-range eggs being produced: "This in turn would raise the prices of free-range eggs, making them unaffordable for many Australian families" (Barlass & Gough 2012).

In another newspaper article, Coles' head of responsible sourcing, Jackie Healing, was reported to have said that Coles' benchmark "gave consumers affordable free-range eggs and certainty" (Fyfe & Millar 2012; see also Fyfe & Millar 2013a).

Investigative journalists and consumer and animal welfare activists, however, continued to criticize the scale of supermarket "free-range" egg production and question whether it could really count as "free range" (Fyfe & Millar 2013b).

By 2014, consumer regulators, including the ACCC and consumer affairs ministers, were rivaling and even eclipsing supermarkets in the public discourse. In 2013, retailers were mentioned in 27 percent of the newspaper articles, with consumer regulators in 11 percent (data not shown). By 2014, consumer regulators accounted for 22 percent of mentions and retailers 14 percent, as shown in Figure 3. This reflects the fact that after a series of interventions from 2012 onwards, in 2014 the ACCC successfully established in court that much "free-range" egg labeling by mainstream large-scale producers was misleading and deceptive to consumers. This was in line with the views of Choice, Green MPs, and animal activists. In 2014, the ACCC took enforcement action for misleading and deceptive conduct against a number of egg producers who had in fact sold "free-range" labeled eggs produced in intensive large-scale conditions and succeeded in court.[16] Newspapers reported that the ACCC indicated that it planned to prosecute more egg producers and that the supermarket standard of 10,000 hens per hectare was "not consistent with consumers' understanding of free range".[17] In the following years, it took more cases seeking to establish a "common sense" understanding of "free range" as requiring "at least, that the hens are able to move about freely on an open range on most days, and that most of the hens do so" (ACCC 2015).

4.3.2. Impact of interaction on regulatory policy and capacity. By 2014, the supermarkets and the ACCC were both competing to govern the meaning of free range. Both appealed to consumer sentiment in different ways, thus demonstrating the entrenchment of the labeling for consumer choice approach. But neither had sufficient regulatory capacity to dominate the space. The supermarkets sought to co-opt and coordinate consumer and industry understandings of free range, but could not gain legitimacy in the face of consistent consumer and animal activist criticism of the very notion of large-scale "free range" and ACCC action. ACCC action against misleading and deceptive "free-range" labeling, on the other hand, could not dominate the space because it was essentially negative. It could say what "free range" was not. But as a reactive regulatory enforcement agency, the ACCC could not put forward a positive proposal for defining free range and assisting industry to demonstrate legitimacy to consumers and retailers. The result was a stalemate in which no one appeared to have the regulatory capacity to move the debate forward, and even the possibility of banning battery cages was creeping up in mentions in newspaper articles (Figure 4).

5. Conclusion

Our analysis of newspaper articles and official policy documents shows that regulatory policy has shifted from a high conflict debate over whether to regulate production by completely banning battery cages during the 1990s, to a general agreement that regulation should facilitate consumer ability to choose free range to encourage higher animal welfare since 2000. Yet even as agricultural ministries sought to minimize their involvement in regulating on-farm

 © 2017 John Wiley & Sons Australia, Ltd

practices and substantive animal welfare practices, citizen and NGO concern about animal welfare in the egg industry still created conflicts and sought to draw in different arms of government – first food authorities (unsuccessfully) and then consumer affairs authorities (with some success) – to ensure fair and meaningful labeling. By 2014, debate had moved from an initiative to improve the welfare of all animals (ban battery cages and require enriched cages) to a contest between industry (supported by agriculture ministries), consumer regulators (supported by consumer and animal advocacy groups), and supermarkets (trying to stake a mediating role for themselves) as to who would set the standard for labeling eggs as "free range." At stake was, first, the need to appease consumer sentiment, second, the desire to avoid industry fury and, third, the living conditions of about one fifth of laying hens in the egg industry.

Advocates had finally succeeded in prompting government regulatory action around free-range layer hens, albeit as a consumer transparency issue, not an animal welfare or farm practice issue. The policy debate had apparently moved away from the possibility of an animal welfare-based approach to defining "free range" on the label. Moreover, it had not succeeded in including and satisfying or co-opting all stakeholders (industry, civil society, and government in deliberation). There is still the question of whether it would be possible to make substantial animal welfare-based improvements to the regulation of on-farm practices for all layer hens, or whether the market itself could move the baseline of animal welfare practice up. Our regulatory network analysis suggests both potential and difficulties for animal welfare improvements through the market or government regulation.

The limitation is that the market-based consumer choice approach makes political networks opaque and narrows the space for public policy-oriented dialogue. Under the labeling for consumer choice approach, public policy dialogue is no longer about the potential for government regulation of minimum standards for a whole sector in the public interest. Rather, it is concerned with a contest of certification, labeling, and marketing schemes oriented toward certain segments of the market. The policy discourse shifts to what consumers expect. But a policy discourse based on consumer expectation is open to both oversentimentalization (advocates may promote unrealistic ideals of happy free range hens) and manipulation (consumer expectations may be conditioned by whoever can control the most sophisticated marketing and information campaigns, often the supermarkets in Australia).

Yet even under a market-based approach, the producers and retailers eventually have to legitimate their preferred definitions of free range by reference to standards and governance systems. The political element of consumer choice – the need for market choices to be underscored by public or private standards that respond to consumer values in some legitimate and overarching way – cannot be avoided.

The potential demonstrated by our analysis is that as long as there are actors who care enough and are active enough about an issue, there will be contestation and regulatory dynamism – and the need to make higher animal welfare standards that are effective and legitimate and can be justified as such. Our flashpoint analysis shows that concern about substantive issues will keep arising – shaped in part by previous decisions. Yet the fluidity of the actors and networks means there is always potential for new developments and the development of regulatory policy is not completely path dependent. Animal welfare in particular is an issue that appeals to a wide variety of people. This can lead to new standards and improvements in market practice overall. Government and other actors, such as supermarkets, may be drawn in to define standards and forced to do so in a way that takes into account the views of multiple actors. Contestation and dynamism also has the capacity to overcome government inaction on the basis of unwillingness to upset industry. The governance via consumer choice approach may appear so far to represent a 16-year detour away from the potential to ban battery cages. There is, however, still the possibility that market contestation and public discussion of free-range labeling has built up understanding and pressure for an improvement in government regulation of layer hen welfare. The animal welfare standard for layer hens is under review again in 2016 and 2017 (Animal Health Australia 2016), providing the first opportunity since the 2000 decision not to ban battery cages to phase out battery cages via legitimate and effective government regulation.

Abbott and Snidal (2009) suggest the value of "orchestration" by states and/or NGOs to facilitate, negotiate, and supervise between different regulatory standards systems to help address the type of deficit of regulatory capacity seen here. Traditional directive orchestration would require the state to create an independent office of animal welfare that would consult with relevant producer, retailer, consumer, and animal welfare groups to develop standards for higher animal welfare certification and labeling schemes.[18] But even in the absence of state willingness and capacity to engage in directive orchestration to create a deliberative democratic space for advancing animal welfare, it may be possible for a state agency, creative consumer, or animal-oriented NGO to create a forum in which different industry animal

© 2017 John Wiley & Sons Australia, Ltd

husbandry practices and certification and labeling schemes are rated according to criteria relevant to industry, consumer, and animal welfare advocates; to report these publicly; and to improve the standards each year.[19] Further research is necessary to explore the potential for such a possibility in Australia.

Endnotes

1 *European Union Council Directive 1997/74/EC of 19 July 1999 laying down minimum standards for the protection of laying hens* [1999] OJ L 203/53. See also *Treaty on the Functioning of the European Union* OJC 326 (entered into force on 1 December 2009) ('*FEU*') Art. 13, as amended by *Treaty of Amsterdam Amending the Treaty on European Union, the Treaties Establishing the European Communities and Certain Related Acts* OJC 340 (entered into force on 1 May 1999), Protocols C. "Protocol on protection and welfare of animals" and all preceding treaties. See also FAWC 2006.

2 For example *Michigan Animal Industry Act* 287 § 746. In California, a citizen-initiated referendum that guarantees the right for farmed chickens and pigs to "lie down, stand up, fully extend their limbs, and turn around freely" is being interpreted as banning battery cages and requiring enriched cages: *California Health and Safety Code* 14 § 25990 (West 1999 & Supp. 2009).

3 Also known as "aviary" systems or "furnished" cages in some jurisdictions. Enriched cages have more space than conventional battery cages and flaps to create a nesting box, perches, and a scratch pad, thus allowing hens some (limited) opportunity to engage in natural behaviors and consequent improvement in health outcomes (Sherwin *et al.* 2010; CSES ca 2015).

4 Austria banned battery cages in 2009 and will phase out enriched cages by 2020; Belgium is set to ban enriched cages by 2024; Switzerland has banned both battery and enriched cages since 1992.

5 Unlike in the EU and US, "organic" is much less popular in Australia with a market share of less than four percent in 2011 (AECL 2011) and is also more expensive (up to A$12 for a dozen in comparison with "free-range" prices of $4.50 to $8.00 for a dozen free-range labeled eggs in major supermarkets).

6 In complementary work, not reported here, we examine the impact on the market via surveys of products available in the market, how they are produced, and how they are labeled: see Parker *et al.* 2013, Parker 2014; Parker & De Costa 2016.

7 The list of terms searched for, the newspapers covered and from what years, and the number of articles year by year are available from the first author upon request.

8 Our interviews with key current stakeholders will be reported in other papers, and may capture some of these private interactions; however, interviews at one point in time are not adequate for systematic historic analysis as required here.

9 The codes used and the ways they were grouped are available from the first author upon request.

10 The AAWS was first produced by the Primary Industries Standing Committee of state, territory, and federal governments coordinated by the Australian Government Department of Agriculture, Fisheries and Forestry; see: http://www.australiananimalwelfare.com.au/content/strategy3. See also White (2013).

11 In 1997–1998 and 2001 the government of the (very small) ACT attempted to ban battery cages. The legislation was passed in 1997 but did not come into effect because it could not be applied without an exemption from National Competition Policy by the other states. In 2014, the ban was finally legislated but only after the only cage egg production facility in the ACT was bought out by the government and closed down after years of activism. See Productivity Commission (1998); *Eggs (Labelling and Sale) Act 2001* (ACT); *Animal Welfare (Factory Farming) Amendment Bill 2014*. In Tasmania in 2012, the Greens-dominated government also announced an intention to completely phase out battery cage farming by refusing permission for any new facilities or the replacement of old cages (ABC News 2012).

12 It was later expanded to include "free range" outdoors production.

13 In 2014, egg production in Australia was worth A$1.7 billion (grocery equivalent) (AECL 2014), and retail egg production accounted for a little less than half (A$8 million) of this amount. There was some coverage of a plan by McDonalds to phase out cage eggs by 2017.

14 *Eggs (Labelling and Sale) Act* 2001 (ACT). Note, however, that this law did not define in any detail what these terms should mean.

15 EU labelling directive: Commission Regulation (EC) No 589/2008 of 23 June 2008 laying down detailed rules for implementing Council Regulation (EC) No 1234/2007 as regards marketing standards for eggs (2007) OJ L 163/6.

16 See *ACCC v CI & Co Pty Ltd, Antonio Pisano and Anna Angelo Pisano* (2010); *ACCC v Bruhn* (2012); Hodgson (2012); *ACCC v Pirovic Enterprises Pty Ltd (No 2)* (2014); ACCC 2014; see also *ACCC v Turi Foods Pty Ltd* (2012); *ACCC v Turi Foods Pty Ltd (No 4)* (2013) (similar misleading and deceptive claims relating to "free to roam" meat chickens); *ACCC v Pepe's Ducks Ltd* (2013). In the *Pirovic* case, the ACCC obtained a declaration from the court that when a producer sold eggs as "free range" it represented that those eggs "were produced by laying hens that were farmed in conditions so that the laying hens were able to move around freely on an open range on an ordinary day (where an ordinary day is every day other than a day when on the open ranges weather conditions endangered the safety or health of the laying hens or predators were present or the laying hens were being medicated); and by laying hens most of which moved about freely on an open range on most ordinary days." The court found that in fact the eggs "were produced by laying hens most of which did not move about freely on an open range on most ordinary days by reason of a combination of: the stocking densities of the barns; the flock sizes in the barns; and the number, size, placement and operation of the physical openings to the open range reducing the ability and propensity of the laying hens to exit the barns and move about freely" and that this amounted to misleading and deceptive conduct.

17 Fyfe and Millar (2013a):

> While not commenting directly on Coles - whose new free-range standard is 10,000 hens per hectare, almost a seven-fold reduction in space from the voluntary guidelines - ACCC commissioner Sarah Court said the watchdog believed 10,000 hens per hectare was not consistent with consumers' understanding of free range. Ms Court said the commission was 'very concerned' the egg industry was trying to redefine 'free range' to 'increase their own profitability' without regard to consumers' views. 'The ACCC is

 © 2017 John Wiley & Sons Australia, Ltd

concerned about the redefinition of what is meant by free range by industry to suit itself, and the fact that the redefinition has the very real potential of misleading consumers.'

18 In 2015, the Greens introduced a bill for an independent office of animal welfare into the Australian Parliament.

19 Such as the Business Benchmark on Farm Animal Welfare run by the Compassion in World Farming NGO in the UK.

20 This is a summary of organizations coded in each category. A full list is available from the first author.

References

Abbott KW, Snidal D (2009) Strengthening International Regulation Through Transnational New Governance: Overcoming the Orchestration Deficit. *Vanderbilt Journal of Transnational Law* 42, 501–578.

ABC News (2012) Tasmania to Ban Battery Hen Farming. ABC News 19 May. [Last accessed 7 Jan 2017.] Available from URL: http://www.abc.net.au/news/2012-05-18/tasmania-to-ban-battery-hen-farming/4019200

ACCC (Australian Competition and Consumer Commission) (2012) Initial Assessment of Certification Trade Mark Application CTM1390450 Filed by the Australian Egg Corporation Limited. 2 Nov 2012. Commonwealth of Australia, Canberra.

ACCC (Australian Competition and Consumer Commission) (2014) ACCC Takes Action against Ecoeggs Supplier for Free Range Claims. Media Release, 9 Dec 2014. ACCC, Canberra.

ACCC (Australian Competition and Consumer Commission) (2015) *ACCC Enforcement Guidance – Free Range Hen Egg Claims*. Commonwealth of AustraliaACCC, Canberra.

AECL (Australian Egg Corporation Ltd) (2011) Annual Report 2011. AECL, North Sydney.

AECL (Australian Egg Corporation Ltd) (2012a) Fact Sheet: Free Range Stocking Densities. AECL, North Sydney. [Last accessed] Available from URL: http://www.aecl.org/system/attachments/511/original/Free%20range%20stocking%20density%20fact%-20sheet.pdf?1334129238

AECL (Australian Egg Corporation Ltd) (2012b) Egg Consumption Cracks New Heights. Media Release, 10 Feb 2012. AECL, North Sydney.

AECL (Australian Egg Corporation Ltd) (2014) Annual Report 2014. AECL, North Sydney.

Albert J (ed) (2009) *Innovations in Food Labelling*. FAO & Woodhead Publishing, Cambridge, UK.

Alcorn G (1999) Assault and Battery. *The Age* (Melbourne) 3 Feb, p. 11.

Almond P (2009) The Dangers of Hanging Baskets: 'Regulatory Myths' and Media Representations of Health and Safety. *Journal of Law and Society* 36, 352.

Animal Health Australia (2016) Australian Animal Welfare Standards and Guidelines: Poultry. [Last accessed 19 Sep 2016.] Available from URL: http://www.animalwelfarestandards.net.au/poultry/

Anonymous (1980) Labels plan for Free Range Eggs. *The Sydney Morning Herald* (Sydney) 16 Jan, p. 1.

Anonymous (2000) Cages Best for Hens. *The Herald–Sun* (Melbourne) 18 Aug.

Armitage C (1980) Factory Farming: A Decent Life for Dinner. *The Sydney Morning Herald* (Sydney) 13 Sep, p. 16

Barlass T, Gough D (2012) Free Ranging Approach to Obeying Code. *The Sunday Age* (Melbourne) 15 Apr, p. 6

Bartley T, Koos S, Samel H, Setrini G, Summers N (eds) (2015) *Looking Behind the Label: Global Industries and the Conscientious Consumer*. Indiana University Press, Bloomington, Indiana.

Bolt C (2000) Feathers Fly Over Egg Decision. *The Financial Review* (Melbourne)19 Aug.

Braithwaite J, Drahos P (2000) *Global Business Regulation*. CUP, Cambridge, UK.

Brambell FWR (1965) *Report of the Technical Committee to Enquire into the Welfare of Animals Kept Under Intensive Livestock Husbandry*. Her Majesty's Stationery Office, London.

Bruce A (2012) Labelling Illogic? Food Animal Welfare and the Australian Consumer Law. *Australian Animal Protection Law Journal* 7, 5.

Buller H, Roe EJ (2013) Modifying and Commodifying Farm Animal Welfare: The Economisation of Layer Chickens. *Journal of Rural Studies*, 33(2014), 141–149.

Burke K (2008) And the Shonky Award Goes to…. *The Sydney Morning Herald* (Sydney) 26 Nov.

Burke K (2009) Yolk's on Us: Egg Group Figures Run Foul of Free-range Claims'. *The Sunday Age* (Melbourne) 6 Sep, p. 4.

Cashore B, Auld G, Renckens S (2011) The Impact of Private, Industry and Transnational Civil Society Regulation and Their Interaction With Official Regulation. In: Parker C, Lehmann Nielsen V (eds) *Explaining Compliance: Business Responses to Regulation*, pp. 254–262. Edward Elgar, Cheltenham, UK.

CHOICE (May 2012) Choice Survey on Consumer Expectations of Free Range Egg Labelling: Key findings report – May 2012. [Last accessed 7 January 2017.] Available from URL: https://www.google.com/url?sa=t&rct=j&q=&esrc=s&source=web&cd=1&cad=rja&uact=8&ved=0CB0QFjAAahUKEwiS5rOmtcHIAhXIHZQKHfQzCwM&url=https%3A%2F%2Fwww.choice.com.au%2F~%2Fmedia%2F3042a3fe97cb4613882f415aa4e56b00.ashx&usg=AFQjCNF5IiGqPZCoS6GuwLs42RCSeghiAg&sig2=pOcVAD8ZsZupwSf7jXObuA

© 2017 John Wiley & Sons Australia, Ltd

CSES (Coalition for Sustainable Egg Supply) (ca 2015) Final Research Results Report [Last accessed] Available from URL: www2.sustainableeggcoalition.org/document_center/download/public/CSESResearchResultsReport.pdf

Davey M (2014) Inside the Battery Hen Shed: The Farmer who wants to Prove Cages aren't Always Cruel. *The Guardian* (Sydney) 19 Sep.

Department of Agriculture, Fisheries and Forestry (2013) *National Food Plan: Our Food Future*. DAFF, Canberra.

Department for Environment, Food, & Rural Affairs (2002) *Code of Recommendations for the Welfare of Livestock: Laying Hens*. DEFRA, London.

Eberlein B, Abbott KW, Black J, Meidinger E, Wood S (2014) Transnational Business Governance Interactions: Conceptualization and Framework for Analysis. *Regulation & Governance* 8.

FAWC (Farm Animal Welfare Council) (2006) Report on Welfare Labelling. June 2006. [Last accessed 7 Jan 2017.] Available from URL: https://www.gov.uk/government/publications/fawc-report-on-welfare-labelling

Farrant D (1999) Call to Back ACT Battery Hen Ban Bid. *The Sunday Age* (Melbourne) 24 Jan, p. 2.

Food Labelling Law and Policy Review Panel (2011) *Labelling Logic: Review of Food Labelling and Policy in Australia*. Commonwealth of Australia, Canberra.

Food Standards Australia and New Zealand (2013) Overarching Strategic Statement for the Food Regulatory System. [Last accessed 7 Jan 2017.] Available from URL: http://www.health.gov.au/internet/main/publishing.nsf/Content/foodsecretariat-stategic-statement

Fuchs D, Kalfagianni A, Havinga T (2011) Actors in Private Food Governance: The Legitimacy of Retail Standards and Multistakeholder Initiatives with Civil Society Participation. *Agriculture and Human Values* 28, 353.

Fulponi L (2006) Private Voluntary Standards in the Food System: The Perspective of Major Food Retailers in OECD Countries. *Food Policy* 31, 1.

Fyfe M, Millar R (2012) Coles tackled on free-range plan. *The Sydney Morning Herald* (Sydney) 4 Mar, p. 10

Fyfe M, Millar R (2013a) 10,000 Hens to a Hectare is No Free Range: ACCC. *The Age* (Melbourne) 5 Mar, p. 5

Fyfe M, Millar R (2013b) Free to Range or Not, Have Supermarkets Egg on Their Faces? *The Age* (Melbourne), 4 Mar. [Last accessed 7 Jan 2017.] Available from URL: http://www.theage.com.au/victoria/free-to-range-or-not-have-super markets-egg-on-their-faces-20130303-2fefx.html

Green P (1999) Fowl Act Promotes Claims of Hens' Mistreatment. *The Australian* (Sydney) 3 Apr, p. 5.

Gulbradsen LH (2014) Dynamic Governance Interactions: Evolutionary Effects of State Responses to Non-state Certification Programs. *Regulation & Governance* 8, 74.

Guthman J (2004) *Agrarian Dreams: The Paradox of Organic Farming in California*. University of California Press, Berkley, CA.

Guthman J (2007) The Polanyian Way? Voluntary Food Labels as Neoliberal Governance. *Antipode*, 39.3(2007), 456–478.

Harrison R (1964) *Animal Machines: The New Factory Farming Industry*. Vincent Stuart Publishers, London, UK.

Hartlieb S, Jones B (2009) Humanising Business Through Ethical Labelling: Progress and Paradoxes in the UK. *Journal of Business Ethics* 88, 583–600.

Havinga T (2006) Private Regulation of Food Safety by Supermarkets. *Law & Policy* 28, 515.

Hodgson MP (2012) Producer Fined for Mislabeling Eggs. Media Release, NSW Food Authority, 7 Oct 2012.

Ilbery B, Maye D (2007) "Marketing sustainable food production in Europe: case study evidence from two dutch labelling schemes." *Tijdschrift voor economische en Sociale Geografie* 98.4(2007), 507–518.

Kelly H (1994) Animal Campaigners Blast Space Ruling for Battery Hens. *The Age* (Melbourne), 29 Oct p. 5

King BG, Pearce NA (2010) The Contentiousness of Markets: Politics, Social Movements, and Institutional Change in Markets." *Annual Review of Sociology* 36, 249–267.

Kitzinger J (2007) Framing and Frame Analysis. In: Devereux E (ed) *Media Studies: Key Issues and Debates*, pp. 134–161. SAGE, New York.

Klintman M, Boström M (2004) Framings of Science and Ideology: Organic Food Labeling in the US and Sweden. *Environmental Politics* 13, 612.

Lang T, Heasman M (2004) *Food Wars: The Global Battle for Mouths, Minds and Markets*. Earthscan, New York.

Levi-Faur D (2012) From "Big Government" to "Big Governance?". In: Levi-Faur D (ed) *The Oxford Handbook of Governance*. pp. 3–18. OUP, Oxford.

Lewis T, Huber A (2015) A Revolution in an Eggcup? Supermarket Wars, Celebrity Chefs, and Ethical Consumption. *Food, Culture & Society* 18, 289.

Lockie S, Higgins V (2007) Roll-out Neoliberalism and Hybrid Practices of Regulation in Australian Agri-environmental Governance. *Journal of Rural Studies* 23, 1–11.

Loughnan D (2012) *Food Shock: The Truth About What we Put on our Plate… and What we can Do to Change It*. Exisle Publishing, Wollombi, NSW, Australia.

Lovvorn JR, Perry NV (2009) California Proposition 2: A Watershed Moment for Animal Law. *Animal Law* 15, 149.

Meidinger E (2006/7) Multi-interest Self-governance through Global Product Certification Programs. *Buffalo Legal Studies Research Paper* 2006-016. University at Buffalo, NY.

 © 2017 John Wiley & Sons Australia, Ltd

Meidinger E (2008) Competitive Supragovernmental Regulation: How Could It Be Democratic? *Chicago Journal Of International Law* 8, 513.

Mench JA, Sumner DA, Rosen-Molina JT (2011) Sustainability of Egg Production in the United States – the Policy and Market Context. *Poultry Science* 90, 229.

Miele M (2011) The Taste of Happiness: Free-range Chicken. *Environment and Planning A* 43, 2076.

Morgan K, Marsden T, Murdoch J (2006) *Worlds of Food: Place, Power and Provenance in the Food Chain*. OUP, Oxford.

Nestle M (2003) *Food Politics: How the Food Industry Influences Nutrition and Health*. University of California Press, Berkley, CA.

Nisbet MC, Brossard D, Kroepsch A (2003) Framing Science: The Stem Cell Controversy in an Age of Press/Politics. *Harvard International Journal of Press/Politics* 2, 36.

Outlaw K (2012) Egg Farming in Australia: Market Research Report, A0142. IBISWorld, Melbourne.

Papadakis E, Grant R (2003) The Politics of 'Light Handed Regulation': New Environmental Policy Instruments in Australia. *Environmental Politics*, 12(1), 25–50.

Parker C, Brunswick C, Kotey J (2013) The Happy Hen on your Supermarket Shelf. *Bioethical Inquiry* 10, 165.

Parker C (2014) The Food Label as Governance Space: Free-range Eggs and the fallacy of Consumer Choice. *Recht der Werkelijkheid* 35, 101.

Parker C, De Costa J (2016) Misleading the Ethical Consumer: The Regulation of Free-range Egg Labeling. *Melbourne University Law Review* 39, 895–949.

Parker C, Scrinis G (2014) Out of the Cage and into the Barn: Supermarket Power Food System Governance and the Regulation of Free Range Eggs. *Griffith Law Review* 23, 318.

Polanyi K (1944) *The Great Transformation: The Political and Economic Origins of Our Time*. Beacon Press, Boston.

Pollan M (2006) Voting with Your Fork. *The New York Times* (New York) 7 May [Last accessed 7 Jan 2017.] Available from URL: http://pollan.blogs.nytimes.com/2006/05/07/voting-with-your-fork/?_r=0

Porter D (1989) Suffer the animals. *The Age* (Melbourne) 27 May, p. 3.

Productivity Commission (1998) *Battery Eggs Sale and Production in the ACT: Research Report*. Commonwealth of Australia, Canberra.

Roberts G (1985) The Free-rangers and the Corporation have Wrapped up the Storm in the Egg-cup. *The Sydney Morning Herald* (Sydney) 13 Sep p. 2.

Roff RJ (2007) Shopping for Change? Neoliberalizing Activism and the Limits to Eating Non-GMO. *Agriculture and Human Values* 24, 511.

SCARM (Standing Committee on Agriculture and Resource Management Working Group) (2000) *Synopsis Report on the Review of Hen Housing and Labeling of Eggs in Australia*. Commonwealth of Australia, Canberra.

Schneiberg M, Bartley T (2008) Organizations, Regulation, and Economic Behavior: Regulatory Dynamics and Forms from the Nineteenth to Twenty-first Century. *Annual Review of Law and Social Science* 4, 31–61.

Scott C (2001) Analysing Regulatory Space: Fragmented Resources and Institutional Design. *Public Law* Summer, 329.

Scrinis G (2016) Reformulation, Fortification and Functionalization: Big Food Corporations' Nutritional Engineering and Marketing Strategies. *Journal of Peasant Studies* 43, 17–37.

Scrinis G, Parker C (2016) Front-of-pack Food Labelling and the Politics of Nutritional Nudges. *Law & Policy* 38, 234–249.

Shaw D, Black I (2010) Market Based Political Action: A Path to Sustainable Development? *Sustainable Development* 18, 385.

Shearing C (1993) A Constitutive Conception of Regulation. In: Grabosky P, Braithwaite J (eds) *Business Regulation and Australia's Future*, pp. 67–79. Australian Institute of Criminology, Canberra.

Sherwin CM, Richards GJ, Nicol CJ (2010) Comparison of the Welfare of Layer Hens in 4 Housing Systems in the UK. *British Poultry Science* 51, 488.

Simpson J (1982) Crusade to Uncage the Animals. *The Mercury* (Hobart) 4 Aug p. 4.

Smith A, The Wealth Of Nations, Book IV, Chapter II, p. 456, para. 9, 1176.

Smith A (2011) Farmers Cackle over Free-range Definition. *The Sydney Morning Herald* (Sydney) 15 Sep.

Smith A (2012) Call for Comment Reveals Cracks in New Free-range Egg Label Plan. *The Sydney Morning Herald* (Sydney) 28 May p. 3.

Taylor K (2000) Hug a Chook. *The Age* (Melbourne) 28 Jun p. 6.

Unknown (2010) Eggs are on the Rise. *The Herald–Sun* (Melbourne) 17 Jul p. 25.

Van Erp J (2013) Messy Business: Media Representations of Administrative Sanctions for Corporate Offenders. *Law & Policy* 35, 109–139.

Veissier I, Miele M (2014) Animal Welfare: Towards Transdisciplinarity – The European Experience. *Animal Production Science* 54, 1119.

© 2017 John Wiley & Sons Australia, Ltd

Watson R (2009) Maccas to Lay Off Caged Eggs for Free Range. *The Herald–Sun* (Melbourne) 15 Aug p. 9.
White S (2013) The Rationality of Animal Suffering in Australian Law. In: Auffret Van Der Kemp T, Lachance M (eds) *Animal Suffering: From Science to Law*, pp. 275–289. Thomson Reuters, Toronto.
Wilson J (2010) Feathers Ruffled by Debeaking. *The Age* (Melbourne) 13 Jul p. 14.

Laws Cited:

California Health and Safety Code 14 § 25990 (West 1999 & Supp. 2009)
Eggs (Labelling and Sale) Act 2001 (ACT); *Animal Welfare (Factory Farming) Amendment Bill* 2014
Eggs (Labelling and Sale) Act (2001) (ACT)
European Union Council Directive 1997/74/EC of 19 July 1999 laying down minimum standards for the protection of laying hens (1999) OJ L 203/53
EU labelling directive (Commission Regulation (EC) No 589/2008 of 23 June 2008 laying down detailed rules for implementing Council Regulation (EC) No 1234/2007 as regards marketing standards for eggs (2007) OJ L 163/6)
Michigan Animal Industry Act 287 § 746 (n.d.)
National Animal Welfare Advisory Committee (NAWC) (2012) Animal Welfare (Layer Hens) Code of Welfare NZ, Minimum Standards No. 4 and 12
Treaty on the Functioning of the European Union OJC 326 (entered into force on 1 December 2009) *('FEU') Art. 13, as amended by Treaty of Amsterdam Amending the Treaty on European Union, the Treaties Establishing the European Communities and Certain Related Acts* OJC 340 (entered into force on 1 May 1999), Protocols C. "Protocol on protection and welfare of animals" and all preceding treaties.

Cases cited:

ACCC v Bruhn (2012) FCA 959 (5 September 2012)
ACCC v CI & Co Pty Ltd, Antonio Pisano and Anna Angelo Pisano (2010) FCA 1511
ACCC v Pepe's Ducks Ltd (2013) FCA 570 (14 June 2013)
ACCC v Pirovic Enterprises Pty Ltd (No 2) (2014) FCA 1028
ACCC v Turi Foods Pty Ltd (2012) FCA 19
ACCC v Turi Foods Pty Ltd (No 4) [2013] FCA 665

 © 2017 John Wiley & Sons Australia, Ltd